

26LBCV00731 26LBCV00731

County: los-angeles

Division: Civil Law and Motion

Department: S27

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Case Number: 26LBCV00731 Hearing Date: August 18, 2026 Dept: S27

Moving Party: Plaintiff, Kimberly Farrar

Opposing Party: Defendant, Queen's View Commons

Homeowners Association

Notice: OK

1. Complaint

Plaintiff, Kimberly Farrar filed this action against Defendants, Queen's View Commons Homeowners Association, Paragon Equities, Inc., and Yoyyann Hawkins for nuisance, negligence, breach of contract/governing documents, breach of fiduciary duty, IIED, declaratory relief, and injunctive relief. The crux of the complaint is that Farrar lives immediately below Hawkins, who has repeatedly allowed her unit to flood and cause damage to Farrar's unit over the course of many years.

26LBCV00721 has been deemed related to this case. In 26LBCV00721, Andrew Donato has sued the same defendants, alleging damage to his unit (which is adjacent to Farrar's unit) due to Hawkins's conduct.

Donato and Farrar have jointly filed this motion, despite the fact that the two cases, while related, have not been consolidated.

2. Motion

for a Preliminary Injunction

a.

Relief

Sought

Plaintiffs seek the following
relief by way of the motion:

Plaintiffs seek a preliminary
injunction against Defendant Toyynn Hawkins ordering that:

1. Ms. Hawkins immediately
cease causing or permitting water to escape from Unit 311 into neighboring
units, including Units 212 and 112;
2. Ms. Hawkins cooperate with
all reasonable inspections of Unit 311 and its plumbing systems, fixtures,
appliances, drains, supply lines, shut-off valves, and other components
reasonably related to the source of prior flooding events;
3. Ms. Hawkins promptly
repair, replace, remediate, or disable any plumbing fixture, appliance,
component, condition, or defect within Unit 311 that creates or contributes to
a risk of flooding or water intrusion into neighboring units;
4. Ms. Hawkins refrain from
leaving running water unattended and otherwise take reasonable measures to
prevent future flooding events originating from Unit 311;
5. Within fifteen (15) days
of the Court's order, Ms. Hawkins provide documentation from a licensed
plumber, contractor, or other qualified professional confirming that Unit 311
has been inspected and identifying any repairs, corrective measures, or
recommendations necessary to address conditions that may create a flooding risk
to neighboring units;
6. Within thirty (30) days of
the Court's order, Ms. Hawkins complete all reasonably necessary repairs
identified by such inspection and provide documentation demonstrating

completion of those repairs; and

7. Such other and further

relief as the Court deems just and proper to prevent future flooding events and protect the health, safety, property, and quiet enjoyment of neighboring

Plaintiffs further seek a

preliminary injunction requiring Defendant Queen's View Commons Homeowners Association to comply with and meaningfully exercise its enforcement authority under the governing documents with respect to the recurring flooding, water intrusion, moisture intrusion, mold-related conditions, and nuisance conditions associated with Unit 311. Specifically, Plaintiffs request that the HOA be ordered to:

1. Within ten (10) days of

the Court's order, investigate the recurring flooding conditions associated with Unit 311, including the source of the flooding, any continuing water intrusion, and any moisture intrusion, mold growth, or related conditions affecting neighboring units and building components impacted by prior flooding events;

2. Require verification,

through qualified professionals where appropriate, that the source of the recurring flooding has been identified and corrected and that any continuing moisture intrusion, water damage, or mold-related conditions resulting from prior flooding events are being properly addressed;

3. Within thirty (30) days of

the Court's order, initiate and conduct the disciplinary and enforcement proceedings required by the governing documents, including any hearings, investigations, notices of violation, compliance proceedings, or other enforcement measures the Association deems appropriate in the exercise of its authority under the CC&Rs and California law;

4. Provide written

confirmation to Plaintiffs that the foregoing investigation has been completed and that the disciplinary and enforcement proceedings have been initiated and are being conducted in accordance with the Association's governing documents; and

5. Such other and further

relief as the Court deems just and proper to prevent future flooding events, abate continuing nuisance conditions, and protect the health, safety, property, and quiet enjoyment of affected homeowners.

b. Law

Governing Preliminary Injunctions

Pursuant to San Francisco Newspaper

Printing Co., Inc. v. Superior Court (1985) 170 Cal.App.3d 438, 442, it is an abuse of discretion to issue a preliminary injunction unless the moving party shows some possibility of success on the merits. If the plaintiff makes this threshold showing, then the Court must evaluate two interrelated factors – the likelihood that the plaintiff will prevail on the merits at trial and the interim harm to the parties in the event the injunction does or does not issue. Doe v. Regents of Univ. of Calif. (2024) 102 Cal.App.5th 766, 773.

“[A]n injunction is prohibitory if it requires a person to refrain from a particular act and mandatory if it compels performance of an affirmative act that changes the position of the parties.” Davenport v. Blue Cross of Calif. (1997) 52 Cal.App.4th 435, 446-448. Pursuant to Brown v. Pacific Found., Inc., (2019) 34 Cal.App.5th 915, 925, mandatory injunctions are rarely granted, and should only be granted in extreme cases where the right thereto is firmly established.

c.

Initial

Note re: Page Limit

Plaintiffs' moving papers are 31 pages in length, more than double the page limit permitted per CRC 3.1113(d).

The Court has done its best to read and consider the entire memorandum, but admonishes Plaintiffs' attorney it will likely not do so in the future in connection with this or other actions.

d.

Analysis

(HOA)

The parties discuss the Ridley v. Rancho Palma Grande Homeowners

Association (2025) 114 Cal.App.5th 788 case in connection with the motion, opposition, and reply. The Court has read and considered the opinion, which is helpful in framing the issues. In Ridley, the plaintiff sued the defendant HOA for failing to enforce its own governing documents, specifically in connection with flooding that occurred in the building. The trial court conducted a 67-day trial, after which it issued a permanent injunction requiring the HOA to complete certain repairs and compensate the homeowners for damages. The HOA appealed, and the court of appeals affirmed. The COA held that the plaintiffs adequately showed the HOA had breached its duties under the governing documents and therefore an injunction should issue.

A close reading of Ridley reveals why a preliminary injunction is not appropriate in this case. First, in Ridley, the HOA conceded the leak was its own responsibility, and in this case, it appears all parties agree that the repair responsibility is that of Hawkins, the upstairs neighbor – in fact, Plaintiffs are seeking to have the HOA enforce its governing documents in connection with disciplining and otherwise requiring Hawkins to repair damage and cease damage, but Plaintiffs are not alleging the HOA is directly responsible for the clean-up.

Second, the injunction at issue in Ridley was a permanent injunction issued after trial. While such an injunction may ultimately be appropriate at the conclusion of this case, the standard for a preliminary injunction is much different, and involves balancing harms to the parties in the event the injunction is or is not granted prior to trial. Plaintiffs herein have shown a pattern of flooding over more than a decade, but there is not currently ongoing flooding. Plaintiffs have not shown how they would be additionally harmed during the approximate one-year period between the hearing on this motion and a trial, over and above harm they have already suffered.

Third, a review of the governing documents reveals that the documents give the HOA great discretion in determining whether and to what extent to interfere in matters between homeowners.

Article XVII, §1 of the CC&Rs states: “The Association, or any Owner, shall have the right to enforce by proceedings at law or in equity, all restrictions, conditions, covenants and reservations, now or hereafter imposed by the provisions of this Declaration or any amendment thereto, including the

right to prevent the violation of any such restrictions, conditions, covenants, or reservations and the right to recover damages or other dues for such violation.” This provision gives the HOA the RIGHT to enforce the documents, but not the obligation to do so.

While other provisions, such as Article VI, §2, create the duty and obligation to enforce the governing documents, including initiating and executing disciplinary proceedings against Members of the Association for violations of the provisions of the governing documents, when this provision is read in connection with XVII §2, above, it is not clear if the HOA is obligated to enforce the documents or merely entitled to do so.

Plaintiffs argue the HOA has, in the past, stepped in to enforce obligations running between Plaintiffs and Hawkins, and this establishes the HOA concedes it has the obligation to do so.

In reality, though, this establishes only that it chose to engage in enforcement action, as it has the right to do under the governing documents.

The Court finds that Plaintiffs may ultimately succeed against the HOA, but that the balancing of the harms weighs so highly against entering the requested injunction that the Court will not do so at this time. The requested injunction is mandatory in nature, requiring the HOA to affirmatively do something, as opposed to refraining from doing something. As noted above, these injunctions are rarely granted, and the right to such relief must be firmly established before relief is granted. Plaintiffs have not met this extremely high burden in this case.

e.

Analysis
(Hawkins)

Plaintiffs also seek an injunction against Hawkins. Proof of personal service of the summons and complaint on Hawkins was filed on 4/16/26.

The Clerk entered Hawkins’s default on 5/19/26. While the parties stipulated to have the defaults of Queen’s View and Paragon set aside, Hawkins remains in default.

The Court has reviewed the proposed injunction against Hawkins. The Court will not issue a mandatory injunction against Hawkins, but will issue the requested prohibitory injunction, including ¶¶1 and 4 of the proposed injunction against

Hawkins. The Court will not issue the relief sought at ¶¶2, 3, 5, and 6 unless and until it issues a final judgment in the action.

Plaintiff is ordered to give notice.